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|    |                                                 | <p>Overruled as to Nos. 13 and 16 (mindset); 15 ("I was concerned about Plaintiff reentering the residence due to her potential Covid-19 exposure." And "Plaintiff was forcibly coughing during the incident." – Personal observation).</p> <p><u>Overstreet Decl.</u></p> <p>Sustained as to No. 17 (hearsay, lacks foundation and personal knowledge, assumes facts not in evidence).</p> <p><u>Request to Take Judicial Notice</u></p> <p>Grant as to Executive Order N-28-20 pursuant to Evid. Code § 452(c), (g), and (h).</p> <p><b><u>Defendants' Objections:</u></b></p> <p>Sustained as to Nos. 1 (lacks foundation, speculation).</p> <p>Overruled as to Nos. 2, 4 (mindset).</p> <p>Not material (Civ. Proc. Code § 473c(q)) as to No. 3.</p> <p>Moving party to give notice of the above rulings, and file a proposed judgment with proof of service within 15 days.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 10 | Doyon et al v Mickle & Lucky Estates, LLC et al | <p><b><u>Motions 1 – 11:</u></b> On 9/15/23 and 9/18/23, Plaintiff Stephen Doyon (here, "Plaintiff") filed twelve discovery motions, one of which was heard on 10/16/23. The other 11 such motions are before the Court here. They are as follows:</p> <p><u>a) Motions 1 &amp; 2 (ROAs 46 and 66):</u> Plaintiff moves for orders to deem admitted the Requests for Admissions, Set One, as directed to defendants Rajwant Kaur ("Kaur") and Jazzy Gill aka Jazzy Singh ("Gill"), for failure to respond thereto, and for \$1,280.88 in sanctions on each such motion, against Gill and Kaur, respectively;</p> <p><u>b) Motions 3-5 (ROAs 62, 82 and 50):</u> Plaintiff moves to compel responses without objections to Requests for Production, Set One, as directed to Defendant Mickle &amp; Lucky Estates, LLC (here, "Owner"), Kaur and Gill, for failure to respond thereto, and for \$1,280.88 in sanctions on each such motion, against Owner, Kaur, and Gill, respectively;</p> <p><u>c) Motions 6-8 (ROAs 70, 78 and 74):</u> Plaintiff moves to compel responses without objections to Special Interrogatories, Set One, as directed to Defendants Kaur, Owner, and Gill, for failure to respond thereto, and for \$1,280.88 in sanctions on each such motion, against Kaur, Owner, and Gill, respectively; and</p> <p><u>d) Motions 9-11 (ROAs 54, 58, and 86):</u> Plaintiff moves to compel responses without objections to Form Interrogatories, Set One, as directed to Defendants Kaur, Owner, and Gill, for failure to respond thereto, and for \$1,280.88 in sanctions against Kaur and Gill, respectively, and for \$1,335.88 in sanctions against Owner.</p> |

For Motions 1-11, the consolidated Opposition demonstrates that responses to the discovery at issue were provided while the motions were pending. (ROA 160, Choi Decl., Ex. C.) Motions 1-11 are therefore **MOOT**, except as to requests for sanctions.

In light of the failures to respond which resulted in the filing of these motions, sanctions are plainly warranted here. Although the Opposition has offered explanations as to the causes for those delays (Choi Decl., ¶¶ 4-12), none of what has been stated excuses the failure on the part of the clients to remain reasonably available to their counsel to respond to discovery.

The Court thus finds that sanctions are warranted on each of these motions, as to the clients only, in the reduced sum of \$354.06 per motion. Sanctions are therefore imposed in the total sum of \$1,416.24 against Gill, \$1,416.24 against Kaur, and \$834.54 against Owner, on these motions. Such sanctions are to be paid to Plaintiff, through his counsel of record, within 30 days after service of notice of this ruling.

**Motion 12:** On 10/13/23, Defendants filed a Motion for Protective Order (ROA 95) to stay the deposition of Gill, individually and as the designated person most knowledgeable ("PMK") for Owner, due to Gill's current incarceration in federal prison.

The Motion is **DENIED**. Where a party seeks a protective order for discovery, the burden is on the party seeking the protective order to show good cause for whatever order is sought. (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 318.) Defendants have not met that burden here.

The evidence presented demonstrates that Plaintiff noticed a deposition for Gill at the prison, but defense counsel objected due to "unavailability" – evidently without further explanation, and without identifying other imminent alternate dates. (ROA 162, Belisle Decl., ¶¶ 9-18, Exs. C-K.) That does not suffice to justify the objection, let alone a protective order.

Defendants otherwise argue that it would have been more convenient and less expensive for the defense if Plaintiff had instead been willing to wait to take the deposition until Gill was released. But they have failed to show why they could not reasonably have prepared for and then defended the deposition in person, as scheduled by Plaintiff. Nor was it reasonable to demand that Plaintiff wait indefinitely to take the deposition, particularly without any documentation to show that release was imminent. Under the circumstances, Plaintiff was entitled to insist that the deposition proceed as noticed. And although the reply now offers some evidence to support the assertion that at least a partial release may now be imminent, that is again not an adequate basis for issuance of a protective order here. Motion 12 is therefore **DENIED**. In accordance with C.C.P. § 2025.420(g), counsel are to confer to schedule the deposition of Gill, individually and to the extent designated as the PMK for Owner, forthwith. Defendants and their

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|    |                    | <p>counsel are expected to cooperate in setting that deposition at the earliest practicable date.</p> <p>For the reasons stated above, Defendants' request for sanctions is also <b>DENIED</b>. However, Plaintiff's request for sanctions, as stated in the Opposition filed as ROA 162, is well-taken here, and is therefore <b>GRANTED</b>. The sum claimed by Plaintiff for sanctions on this motion appears reasonable in context. Sanctions are therefore imposed against attorneys Frederick H. Choi and Resnick &amp; Louis, P.C. under C.C.P. § 2025.420(h), in the amount of \$3,420, to be paid to Plaintiff, through his counsel of record, within 30 days after service of notice of this ruling.</p> <p>Counsel for Plaintiff is to give notice of these rulings.</p> |
| 11 | Calderon v. Danesh | No tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
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